Parliament	State Legislature
9. The Constitution does not provide for the resolution of any deadlock between the two Houses. This is because, the will of the Lok Sabha is made to prevail over that of the Rajya Sabha, if the latter does not agree to the bill passed by the former.	9. The Constitution does not provide for the resolution of any deadlock between the two Houses. This is because, the will of the legislative assembly is made to prevail over that of legislative council, if the latter does not agree to the bill passed by the former.

POSITION OF LEGISLATIVE COUNCIL

The constitutional position of the council (as compared with the assembly) can be studied from two angles:

A. Spheres where council is equal to assembly.

B. Spheres where council is unequal to assembly.

 **Equal with Assembly**

In the following matters, the powers and status of the council are broadly equal to that of the assembly:

1. Introduction and passage of ordinary bills. However, in case of disagreement between the two Houses, the will of the assembly prevails over that of the council.
2. Approval of ordinances issued by the governor.
3. Selection of ministers including the chief minister. Under the Constitution the, ministers including the chief minister can be members of either House of the state legislature. However, irrespective of their membership, they are responsible only to the assembly.
4. Consideration of the reports of the constitutional bodies like State Finance Commission, state public service commission and Comptroller and Auditor General of India.
5. Enlargement of the jurisdiction of the state public service commission.

 **Unequal with Assembly**

In the following matters, the powers and status of the council are unequal to that of the assembly:

1. A Money Bill can be introduced only in the assembly and not in the council.
2. The council cannot amend or reject a money bill. It should return the bill to the assembly within 14 days, either with recommendations or without recommendations.
3. The assembly can either accept or reject all or any of the recommendation of the council. In both the cases, the money bill is deemed to have been passed by the two Houses.